

ble of Spain was then expected for a Treaty of Peace; and the Navy might be brought to the *Gravn* under pretence of the Service in the *Low Countries*. And *Raleigh* further said, That many more were hanged for Words, than for Deeds. And before *Raleigh's* Treason was discovered, it was reported in Spain, that Don *Raleigh* and Don *Cobham* should cut the King of England's Throat.

I say not, that we have any Proofs, that these of the Powder-Plot were acquainted with *Raleigh*, or *Raleigh* with them: but as before was spoken of the Jesuits and Priests, so they all were joined in the Ends, like *Sampson's* Foxes in the Tails, howsoever sever'd in their Heads.

The Conclusion shall be from the admirable Clemency and Moderation of the King, in that howsoever these Traitors have exceeded all others their Predecessors in Mischief, and so *Crescente Malitia, crescere debuit & Pena*; yet neither will the King exceed the usual Punishment of Law, nor invent any new Torture or Torment for them; but is graciously pleased to afford them as well an ordinary Course of Trial, as an ordinary Punishment, much inferior to their Offence. And surely worthy of Observation is the Punishment by Law provided and appointed for High-Treason, which we call *Crimen læsæ Majestatis*. For first, after a Traitor hath had his just Trial, and is convicted and attainted, he shall have his Judgement to be drawn to the place of Execution from his Prison, as being not worthy any more to tread upon the Face of the Earth whereof he was made: Also for that he hath been retrograde to Nature, therefore is he drawn backward at a Horse-Tail. And whereas God hath made the Head of Man the highest and most supreme Part, as being his chief Grace and Ornament, *Pronaque cum spectant Animalia cætera terram, Os homini sublime dedit*; he must be drawn with his Head declining downward, and lying so near the Ground as may be, being thought unfit to take benefit of the common Air. For which Cause also he shall be strangled, being hanged up by the Neck between Heaven and Earth, as deemed unworthy of both, or either; as likewise, that the Eyes of Men may behold, and their Hearts condemn him. Then is he to be cut down alive, and to have his Privy Parts cut off and burnt before his Face, as being unworthily begotten, and unfit to leave any Generation after him. His Bowels and inlay'd Parts taken out and burnt, who inwardly had conceived and harboured in his heart such horrible Treason. After, to have his Head cut off, which had imagined the Mischief. And lastly, his Body to be quartered, and the Quarters set up in some high and eminent Place, to the View and Detestation of Men, and to become a Prey for the Fowls of the Air.

And this is a Reward due to Traitors, whose Hearts be hardened: For that it is Physic of State and Government, to let out corrupt Blood from the Heart. But, *Pœnitentia vera nunquam, sera sed pœnitentia sera raro vera*: True Repentance is indeed never too late; but late Repentance is seldom found true: Which yet I pray the merciful Lord to grant unto them, that having a Sense of their Offences, they may make a true and sincere Confession both for their Souls Health, and for the Good and Safety of the King and this State. And for the rest that are not yet apprehended, my Prayer to God is, *Ut aut convertantur ne pereant, aut confundantur ne noceant*; that either they may be converted, to the End they perish not, or else confounded, that they hurt not.

After this by the Direction of Master Attorney-General, were their several Examinations (subscribed by themselves) shewed particularly unto them, and acknowledged by them to be their own, and true, wherein every one had confessed the Treason. Then did Master Attorney desire, That albeit that which had been already done and confessed at the Bar, might be all-sufficient for the Declaration and Justification of the Course of Justice then held, especially seeing we have *Reos confitentes*. The Traitors own voluntary Confessions at the Bar; yet for further Satisfaction to so great a Presence and Audience, and their better Memory of the Carriage of these Treasons, the voluntary and free Confessions of all the said several Traitors in writing subscribed with their own proper Hands, and acknowledged at the Bar, by themselves to be true, were openly and distinctly read; By which, amongst other things, it appeared that *Bates* was absolved for what he undertook concerning the Powder-Treason, and being therein warranted by the Jesuits. Also it appeared, that *Hammond* the Jesuit, after that he knew the Powder-Treason was discovered, and that these Traitors had been in actual Rebellion, confessed them, and gave them Absolution: And this was on Thursday the 7th of November.

Here also was Mention made by Master Attorney of the Confessions of *Watson* and *Clarke*, Seminary Priests, upon their Apprehension; who affirmed, that there was some Treason intended by the Jesuits, and then in Hand; as might appear.

1. By their continual negotiating at that Time with Spain, which they assured themselves tended to nothing but a preparation for a foreign Commotion.

2. By their collecting and gathering together such great Sums of Money, as then they had done, therewith to levy an Army when Time should serve.

3. For that sundry of the Jesuits had been tampering with Catholics, as well to dissuade them from Acceptance of the King at his first coming, saying, That they ought rather to Die, than to admit of any Heritick (as they continually termed his Majesty) to the Crown; and that they might not, under pain of Excommunication, accept of any but a Catholic for their Sovereign; as also to dissuade Catholics from their Loyalty after the State was settled.

Lastly, In that they had both bought up store of great Horses throughout the Country, and conveyed Powder and Shot, and Artillery secretly to their Friends; wishing them not to stir, but keep themselves quiet until they heard from them.

After the reading of their several Examinations, Confessions, and voluntary Declaration as well of themselves, as of some of their dead Confederates, they were all by the Verdict of the Jury found guilty of the Treasons contained in their Indictment.

And then being severally asked, What they could say, wherefore Judgment of Death should not be pronounced against them; there was not one of these (except *Rookwood*) who would make any continued Speech, either in Defence or Extenuation of the Fact.

*Thomas Winter* only desired, that he might be hanged both for his Brother and himself.

*Guy Fawkes* being asked, Why he pleaded Not Guilty, having nothing to say for his Excuse: answered, That he had so done in respect of certain Conferences mention'd in the Indictment, which he said that he knew not of: Which were answered to have been set down according to Course of Law, as necessarily pre-supposed before the Resolution of such a Design.

*Keys* said, That his Estate and Fortunes were desperate, and as good now as at another time, and for this Cause rather than for another.

*Bates* craved Mercy.

*Robert Winter*, Mercy.

*John Grant* was a good while mute; yet after, submissively said, He was guilty of a Conspiracy intended, but never effected.

But *Ambrose Rookwood* first excused his denial of the Indictment, for that he had rather lose his Life than give it. Then did he acknowledge his Offence to be so heinous, that he justly deserved the Indignation of the King, and of the Lords, and the Hatred of the whole Commonwealth; yet could he not despair of Mercy at the Hands of a Prince, so abounding in Grace and Mercy: And the rather, because his Offence, tho' it were incapable of any Excuse, yet not altogether incapable of some Extenuation, in that he had been neither Author nor Actor, but only persuaded and drawn in by *Catesby*, whom he loved above any worldly Man: And that he had concealed it not for any Malice to the Person of the King, or to the State, or for any ambitious Respect of his own, but only drawn with the tender Respect, and the faithful and dear Affection he bare to Mr. *Catesby* his Friend, whom he esteem'd dearer than any thing else in the World. And this Mercy he desired not for any fear of the Image of Death, but for grief that so shameful a Death should leave so perpetual a blemish and blot unto all Ages, upon his Name and Blood. But howsoever that this was his first Offence, yet he humbly submitted himself to the Mercy of the King, and prayed that the King would herein imitate God, who sometimes doth punish corporally, non mortaliter, corporally, yet not mortally.

Then was related how that on the Friday immediately before this Arraignment, *Robert Winter* having found opportunity to have Conference with *Fawkes* in the Tower, in regard of the nearness of their Lodgings, should say to *Fawkes*, as *Robert Winter* and *Fawkes* confessed, That he and *Catesby* had Sons, and that Boys would be Men, and that he hoped they would Revenge the Cause; nay, that God would raise up Children to *Abraham* out of Stones: Also that they were sorry, that nobody did set forth a Defence or Apology of their Action, but yet they would maintain the Cause at their Deaths.

Here also was reported *Robert Winter's* Dream, which he had before the blasting with Powder in *Littleton's* House, and which he himself confessed and first notified, viz. That he thought he saw Steeples stand awry, and within those Churches strange and unknown Faces. And after, when the foresaid Blast had the Day following scorched divers of the Confederates, and much disfigured the Faces and Countenances of *Grant*, *Rookwood*, and others; then did *Winter* call to Mind his Dream, and to his Remembrance thought, that the Faces of his Associates so scorched, resembled those which he had seen in his Dream.

Then was Sir *Everard Digby* arraigned, and after his Indictment was read; wherein he was charged, not only to have been acquainted with the Powder-Treason, and concealed it, and taken the double Oath of Secrecy and Constancy therein, but likewise to have been an Actor in this Conspiracy; and lastly to have exposed, and openly shewed himself in the Rebellion in the Country amongst the rest of the Traitors. All which after he had attentively heard and marked, knowing that he had confessed it, and the strength and Evidence of the Proofs against him, and convicted with the Testimony of his own Conscience, shewed his Disposition to confess the principal Part of the said Indictment, and so began to enter into a Discourse. But being advertised that he must first plead to the Indictment directly, either Guilty, or not Guilty; and that afterwards he should be licensed to speak his Pleasure; he forthwith confessed the Treason contained in the Indictment, and so fell into a Speech, whereof there were two Parts, viz. Motives, and Petitions. The first Motive which drew him into this Action, was not Ambition or Discontentment of his Estate, neither Malice to any in Parliament, but the Friendship and Love he bare to *Catesby*, which prevailed so much, and was so powerful with him, as that for his sake he was ever contented and ready to hazard himself and his Estate. The next Motive, was the Cause of Religion, which alone, seeing (as he said) it lay at the stake, he entered into Resolution to neglect in that behalf, his Estate, his Life, his Name, his Memory, his Posterity, and all worldly and earthly Felicity whatsoever; tho' he did utterly extirpate, and extinguish all other hopes for the restoring of the Catholick Religion in England. His third Motive was, that Promises were broken with the Catholics. And lastly, That they generally feared harder Laws from this Parliament against Recusants, as that Recusants Wives, and Women should be liable to the Mulf as well as their Husbands and Men. And further, that it was supposed, that it should be made a *Pœmuniere*, only to be a Catholick.

His Petitions were, That since his Offence was confined and contained within himself, that the Punishment also of the same might extend only to himself, and not to be transferred either to his Wife, Children, Sisters, or others: And therefore for his Wife he humbly craved, that she might enjoy her Jointure; his Son the benefit of an Entail made long before any thought of this Action; his Sisters, their just and due Portions, which were in his Hands; his Creditors their rightful Debts, which that he might more justly set down under his Hand, he requested that before his Death, his Man (who was better acquainted both with the Men, and the Particulars than himself) might be licensed to come unto him. Then prayed he Pardon of the King and Lords for his Guilt. And lastly he entreated to be beheaded; desiring all Men to forgive him, and that his Death might satisfy them for his Trespas.

To this Speech forthwith answered Sir *Edward Coke* Attorney-General, but in respect of the time (for it grew now dark) very briefly:

1. For his Friendship with *Catesby*, that it was mere Folly and wicked Conspiracy.

2. His Religion, Error, and Heresy.

3. His Promises, idle and vain Presumptions, as also his Fears, false Alarms,

Alarms, Concerning Wives that were Recufants, if they were known fo to be before their Husbands (though they were good Protestants) took them, and yet for outward and worldly Refpects whatsoever, any would match with fuch; great reason there is, that he or they should pay for it, as knowing the Penalty and Burden before: for *volenti & scienti non fit Injuria*; No Man receives Injury in that, to which he willingly and knowingly agreeth and consenteth. But if she were no Recufant at the time of Marriage, and yet afterwards he suffer her to be corrupted and seduced, by admitting Priests and Romanists into his House; good reason likewise that he, be he Papist or Protestant, should pay for his Negligence and Misgovernment.

4. Concerning the Petitions for Wife, for Children, for Sisters, &c. O how he doth now put on the bowels of Nature and Compassion, in the peril of his private and domestical Estate! But before, when the publick State of his Country, when the King, the Queen, the tender Princes, the Nobles, the whole Kingdom were designed to a perpetual Destruction; where was then this Piety, this religious Affection, this Care? All Nature, all Humanity, all Respect of Laws both divine and human, were quite abandoned; then was there no Conscience made to extirpate the whole Nation, and all for a pretended Zeal to the Catholick Religion, and the Justification of so detestable and damnable a Fact.

Here did Sir Everard Digby interrupt Mr. Attorney, and said that he did not justify the Fact, but confessed that he deserved the vilest Death, and most severe Punishment that might be: But he was an humble Petitioner for Mercy, and some Moderation of Justice. Whereupon Mr. Attorney replied, that he should not look by the King to be honoured in the manner of his Death, having so far abandoned all Religion and Humanity in his Action: But that he was rather to admire the great Moderation and Mercy of the King, in that for so exorbitant a Crime, no new Torture answerable thereunto was devised to be inflicted upon him. And for his Wife and Children, whereas he said that for the Catholick Cause he was content to neglect the Ruin of himself, his Wife, his Estate, and all; he should have his desire as it is in the *Psalm*, *Let his Wife be a Widow, and his Children Vagabonds, let his Posterity be destroyed, and in the next Generation let his Name be quite put out.* For the paying of your Creditors, it is equal and just; but yet fit the King be first satisfied and paid, to whom you owe so much, as that all you have is too little: yet these things must be left to the Pleasure of his Majesty, and the Course of Justice and Law.

Earl of Northamp. You must not hold it strange, Sir Everard Digby, though at this time being pressed in Duty, Conscience and Truth, I do not suffer you to wander in the Labyrinth of your own idle Conceits, without opposition, to seduce others, as yourself have been seduced, by false Principles, or to convey yourself by Charms of Imputation, by Clouds of Error, and by Shifts of lately devised Equivocation, out of that straight wherein your late secure and happy Fortune hath been un luckily entangled, but yet justly surprized by the Rage and Revenge of your own rash Humours. If in this Crime (more horrible than any Man is able to expresse) I could lament the Estate of any Person upon Earth, I could pity you; but thank yourself and your bad Counsellors for leading you into a Crime of such a kind, as no less benumbeth in all faithful, true and honest Men, the Tendernefs of Affection, than did in you the Sense of all Humanity.

That you were once well thought of and esteemed by the late Queen, I can witness, having heard her speak of you with that Grace, which might have encouraged a true Gentlemen to have run a better Course. Nay, I will add further, that there was a time wherein you were as well affected to the King our Master's Expectation, though perhaps upon false Rumours and Reports, that he would have yielded Satisfaction to your unprobable and vast Desires; but the Seed that wanted moisture (as our Saviour himself reporteth) took no deep Root: that Zeal which hath no other End or Object than the pleasing of itself, is quickly spent; and Trajan, that worthy and wise Emperor, had reason to hold himself discharged of all Debts to those that had offended more by Prevarication, than they could ever deserve by Industry.

The Grace and Goodness of his Majesty in giving Honour at his first coming unto many Men of your own Affection, and (as I think) unto yourself; his Facility in admitting all without distinction of Trojan or of Tyrian, to his Royal Presence, upon just occasions of Access; his Integrity in setting open the Gate of civil Justice unto all his Subjects equally and indifferently, with many other Favours that succeeded by the Progression of Peace; are so palpable and evident to all Men, that have either Eyes of Understanding, or Understanding of Capacity, as yourself and many others have been driven of late to excuse and countenance your execrable Ingratitude with a false and scandalous Report of some further Hope and Comfort yielded to the Catholicks for Toleration or Connivance, before his coming to the Crown, than since hath been performed, made good or satisfied.

I am not ignorant, that this seditious and false Alarm hath awaked and incited many working Spirits to the prejudice of the present State, that might otherwise have slept as before with silence and sufferance; it hath served for a Shield of Wax against a Sword of Power: it hath been used as an Instrument of Art to shadow false Approaches, till the Trojan Horse might be brought within the Walls of the Parliament, with a Belly stuffed, not as in old time with armed Greeks, but with hellish Gunpowder. But howsoever God had blinded you and others in this Action, as he did the King of Egypt and his Instruments, for the brighter Evidence of his own powerful Glory; yet every Man of Understanding could discern, that a Prince whose Judgment had been fixed by Experience of so many Years upon the Poles of the North and the South, could not shrink upon the sudden: no nor since with fear of that Combustion which Catesby that Arch-Traitor, like a second Phaeton, would have caused in an instant in all the Elements. His Majesty did never value Fortunes of the World, in lesser Matter than Religion, with the Freedom of his Thoughts: he thought it no safe Policy (professing as he did, and ever will) to call up more Spirits into the Circle than he could put down again; he knew, that *omne regnum in se divisum desolabitur*, Philosophy doth teach, that whatsoever any Man may think in secret thought, that where one doth hold of Cephas, another of Apollo, openly Diffension ensues, *Quod insitum alieno*

*solo est, in id quo alitur natura vertente degenerat*; and the World will ever apprehend, that *Quorum est commune symbolum, facillimas est transitus*.

Touching the Point itself of promising a kind of Toleration to Catholicks, as it was divulged by these two Limbs of Lucifer, Watson and Percy, to raise a ground of Practice and Conspiracy against the state and Person of our dear Sovereign, let the Kingdom of Scotland witness for the space of so many Years before his coming hither, whether either Flattery or Fear (no, not upon that Enterprize of the 17th of November, which would have put the patience of any Prince in Europe to his proof) could draw from the King the least Inclination to this dispensative Indifference, that was only believed, because it was eagerly desired.

Every Man doth know how great Art was used, what strong Wits sublimed, and how many Ministers suborned and corrupted many Years both in Scotland and in foreign Parts, to set the King's Teeth an edge with fair Promises of future Helps and Supplies, to that happy End of attaining his due Right in England, when the Sun should set, to rise more gloriously in the same Hemisphere, to the wonder both of this Island and of the World. But all in vain; for *jacta erat alea*, the King's Compass had been set before, and by a more certain Rule, and they were commonly cast off as forlorn Hopes in the King's Favour, that ran a Course of ranking themselves in the foremost Front of foreign Correspondency.

Upon notice given to his Majesty from hence some Years before the Death of the late Queen, that many Men were grown suspicious of his Religion, by Rumours spread abroad, that some of those in foreign Parts, that seemed to be well-affected to his future Expectation, had used his Name more audaciously, and spoken of his Favour to the Catholicks more forwardly than the King's own Conscience and unchangeable Decree could acknowledge or admit (either with a purpose to prepare the Minds of foreign Princes, or for a practice to estrange and alienate Affections at home) not only utterly renounced and condemned these Encroachments of blind Zeal, and rash Proceedings, by the Voices of his own Ministers, but was careful also for a Caution to succeeding Hopes, so far as lay in him, that by the Disgrace of the Delinquents in this kind, the Minds of all English Subjects chiefly might be secured, and the World satisfied.

No man can speak in this Case more confidently than myself, that received in the Queen's time, for the space of many Years, Directions and Warnings to take heed, that neither any further Comfort might be given to Catholicks, concerning future Favours, than he did intend, which was to bind all Subjects in one Kingdom to one Law, concerning the Religion established, howsoever in Civil Matters he might extend his Favour as he found just cause: nor any Seeds of Jealousy and Diffidence sown in the Minds of Protestants by Semis and Achitophels, to make them doubtful of his Constancy, to whom he would confirm with his dearest Blood, that Faith which he had sucked from the Breast of his Nurse, apprehended from the Cradle of his Infancy, and maintained with his uttermost Endeavour, Affection and Strength: since he was more able out of reading and disputing, to give a reason of those Principles which he had now digested and turned to Nutriment.

He that wrote the Book of Titles before the late Queen's Death, declares abundantly by seeking to possess some Foreign Prince of the King's Hereditary Crowns, when the Cause should come to the proof, and may witness instead of many; what hope there was of the King's Favour or Affection to Catholicks in the case of Toleration or Dispensation, with Exercise of Conscience. For every Man may guess that it was no slight or ordinary degree of Despair, that made him and other of his Suit renounce their Portion in the Son and Heir of that renowned and rare Lady, Mary Queen of Scotland, a Member of the Roman Church; as some did in David, *Nulla nobis pars in David, nec hereditas in filio Isai*: For hereof by Letters intercepted in their Passage into Scotland, the Records and Proofs are evident. His Majesty, so long as he was in expectation of that which by the Work and Grace of God he doth now possess, did ever seek to settle his Establishment upon the Faith of Protestants in generality, as the most assured Sheet-Anchor. For tho' he found a number on the other side, as faithful and as well-affected to his Person, Claim and Interest, as any Men alive, as well in respect of their dependency upon the Queen his Mother, as for the taste which they had of the sweetness of himself; yet finding with what strength of Blood many have been over-carried out of a Fervency in Zeal in former Times, observing to what Censures they were subject, both in Points of Faith, and Limitation of Loyalty: And last of all, forcasting to what end their former Protestation would come, when present Satisfaction should shrink; he was ever fearful to embark himself for any further Voyage and Adventure in this Strait, than his own Compass might steer him, and his Judgment level him.

If any one green Leaf for Catholicks could have been visibly discerned by the Eye of Catesby, Winter, Garnet, Fawkes, &c. they would neither have entered into Practice with foreign Princes during the Queen's time for prevention of the King's Lawful and Hereditary Right, nor have renewed the same both abroad and at home by Missions and Combinations, after his Majesty was both applauded and entred.

It is true, that by Confessions we find, that false Priest Watson, and Arch-Traitor Percy, to have been the first Devisers and Divulgers of this scandalous Report, as an accursed Ground, whereon they might with some Advantage, as it was conceived, build the Castles of their Conspiracy.

Touching the first, no Man can speak more soundly to the point than myself: for being sent into the Prison by the King to charge him with this false Alarm, only two days before his Death, and upon his Soul to press him in the presence of God, and as he would answer it at another Bar, to confess directly whether at either of both these times he had access unto his Majesty at Edinborough, his Majesty did give him any Promise, Hope or Comfort of Encouragement to Catholicks concerning Toleration; he did there protest upon his Soul that he could never win one Inch of Ground, or draw the smallest Comfort from the King in those degrees, nor further than that he would have them apprehend, that as he was a Stranger to this State, so till he understood in all Points how those matters stood, he would not promise Favour any way; but did protest that all the Crowns and Kingdoms in this World, should not induce him to change any jot of his Profession, which was the Pasture of his Soul, and Earnest of his eternal Inheritance. He did confess that in very deed, to keep up the Hearts of Catholicks in Love and Duty to the